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Mandarich Law Group, LLP California Debt Collector License Number 10795-99.
Attorneys for Plaintiff: CAVALRY SPV I, LLC, AS ASSIGNEE OF CAPITAL ONE, N.A.

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Superior Court of California,
County of Los Angeles
1/08/2024 9:33 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

CAVALRY SPV I, LLC, AS ASSIGNEE OF
CAPITAL ONE, N.A.,
Plaintiff,

vs.

CHARLIE D PONCE, an individual;

and DOES 1 through 10 inclusive.
Defendant.

Case No. 24CHLC00646

COMPLAINT FOR:

- 1. ACCOUNT STATED**
- 2. OPEN BOOK ACCOUNT**

DEMAND: \$7,572.34

Plaintiff alleges:

FACTS COMMON TO ALL CAUSES OF ACTION

1.Plaintiff is and at all times herein mentioned, CAVALRY SPV I, LLC, AS ASSIGNEE OF CAPITAL ONE, N.A., and successor in interest to original creditor, CAPITAL ONE, N.A..

2.Plaintiff is the only entity that purchased the debt after charge-off and its name and address is as follows: CAVALRY SPV I, LLC, AS ASSIGNEE OF CAPITAL ONE, N.A. 1 American Lane Suite 220 Greenwich, CT 06831.

3.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California Debt Collector License Number 10630-99.

4.The charge-off creditor at the time of charge-off is CAPITAL ONE, N.A., P.O. BOX 60519 CITY OF INDUSTRY, CA 91716-0519, and the account number associated with this debt is XXXXXXXXXXXXX9197.

5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off
4 creditor's records prior to the sale of the debt is CHARLIE D PONCE, 10254 E AVENUE R14 ,
5 LITTLE ROCK, CA 93543-1525.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
13 Defendant, and each of them, are jointly and severally liable that the actions described herein
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
16 delivered a credit card application to the original creditor, CAPITAL ONE, N.A. or made such
17 application over the telephone or Internet. Pursuant to the aforementioned application, CAPITAL
18 ONE, N.A. provided Defendant with a credit account, and granted use privileges on the same,
19 account number XXXXXXXXXXXXX9197 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay CAPITAL ONE, N.A. and any successors in interest, for any
23 charges on the Account including, but not limited to, charges for purchase of goods and service
24 and/or cash advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services
27
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1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay CAPITAL ONE, N.A. and its successors in interest for the amount of the purchase and/or
3 cash advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on November 19, 2022.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$7,572.34, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$7,572.34.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, CAPITAL ONE, N.A. and successors in interest including
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement and/or Account Records provided to the Defendant while the account was
20 active, demonstrating that the debt was incurred by the Defendant as described in California Civil
21 Code section 1788.52(b).

22 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
23 of the Final Billing Statement and/or Transaction History.

24 23.Upon opening the Account with CAPITAL ONE, N.A., the Defendant(s) agree to
25 reimburse CAPITAL ONE, N.A., and hence Plaintiff as successor in interest for the costs related
26 to the collection of amounts owing on the Account. Plaintiff has been required to retain Mandarich
27
28

1 Law Group, LLP to pursue collection of the amount due hereunder.

2
3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.

6 25.Within the past 4 years, an account was stated in writing in which it was agreed that
7 Defendant were indebted in the amount previously referenced herein. Although demand has been
8 made upon Defendant, said amount of \$7,572.34 has not been paid, and it is now due, owing and
9 unpaid from Defendant to Plaintiff, as successor in interest.
10

11
12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.

15 27.Within the past 4 years, Defendant and each of them became indebted in the amount of
16 the previously mentioned herein for a balance due on a book account for goods sold and delivered
17 and/or services rendered by CAPITAL ONE, N.A.. Although demand has been made upon
18 Defendant, said amount of \$7,572.34 has not been paid, and it is now due, owing and unpaid
19 including attorney's fees from Defendant to Plaintiff as successor in interest.
20

1
2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3
4 1. For the damages and money in the sum of \$7,572.34,
5 2. For costs of suit incurred; and
6 3. For such other and further relief as the Court deems just and proper.
7
8 4. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.

9
10 Dated: 12/24/2023

By: **MANDARICH LAW GROUP, LLP**

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14 [X] Martin Weingarten, Esq.
15 *Attorneys for Plaintiff*
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EXHIBIT A

Payment Information

Payment Due Date
Sep 11, 2022

For online and phone payments, the deadline is 8pm ET.

New Balance
\$6,370.43

Minimum Payment Due
\$198.00

LATE PAYMENT WARNING: If we do not receive your minimum payment by your due date, you may have to pay a late fee of up to \$38.00.

MINIMUM PAYMENT WARNING: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Minimum Payment	22 Years	\$18,561
\$252	3 Years	\$9,087
Estimated savings if balance is paid off in about 3 years: \$9,474		

If you would like information about credit counseling services, call 1-888-326-8055.

Account Summary

Previous Balance	\$6,304.41
Payments	- \$200.00
Other Credits	\$0.00
Transactions	+ \$93.71
Cash Advances	+ \$0.00
Fees Charged	+ \$38.00
Interest Charged	+ \$134.31
New Balance	= \$6,370.43
Credit Limit	\$6,500.00
Available Credit (as of Aug 17, 2022)	\$129.57
Cash Advance Credit Limit	\$900.00
Available Credit for Cash Advances	\$129.57



Manage your account
anywhere, anytime.
 Pay your bill, set up alerts and more
 with the Capital One® mobile app.

300077

Text ONE to 80101 to download the app today. Messaging & Data rates may apply.

Account Notifications



You were assessed a past due fee because your minimum payment was not received by the due date. To avoid this fee in the future, we recommend that you allow at least 7 business days for your minimum payment to reach Capital One.

Pay or manage your account at unionplus.capitalone.com

Customer Service: 1-800-622-2580

See reverse for Important Information



CHARLIE D PONCE
 10254 E AVENUE R14
 LITTLEROCK, CA 93543-1525



Save time, stay informed.
 Discover new features with
 the Capital One Mobile app.

Scan this QR Code with your phone's camera to download the top-rated Capital One Mobile app.

Payment Due Date: **Sep 11, 2022**

Account ending in 9197

New Balance	Minimum Payment Due	Amount Enclosed
\$6,370.43	\$198.00	\$ _____

Please send us this portion of your statement and only one check (or one money order) payable to Capital One to ensure your payment is processed promptly. Allow at least seven business days for delivery.

Capital One
 P.O. Box 60519
 City of Industry CA 91716-0519



How can I Avoid Paying Interest Charges? If you pay your New Balance in full by the due date each month, we will not charge interest on new transactions that post to the purchase balance. If you have been paying in full **without** Interest Charges, but fail to pay your next New Balance in full, we will charge interest on the unpaid balance. Interest Charges on Cash Advances and Special Transfers start on the transaction date. Promotional offers may allow you to pay less than the total New Balance and avoid paying interest on new transactions that post to your purchase balance. See the front of your statement for additional information.

How is the Interest Charge Determined? Interest Charges accrue from the date of the transaction, date the transaction is processed or the first day of the Billing Cycle. Interest accrues daily on every unpaid amount until it is paid in full. Interest accrued during a Billing Cycle posts to your account at the end of the Billing cycle and appears on your next statement. You may owe Interest Charges even if you pay the entire New Balance one month, but did not do so the prior month. Once you start accruing Interest Charges, you generally must pay your New Balance in full two consecutive Billing Cycles before Interest Charges stop being posted to your Statement. Interest Charges are added to the corresponding segment of your account.

Do you assess a Minimum Interest Charge? We may assess a minimum Interest Charge of \$0.00 for each Billing Cycle if your account is subject to an Interest Charge.

How do you Calculate the Interest Charge? We use a method called Average Daily Balance (including new transactions).

1. First, for each segment we take the beginning balance each day and add in new transactions and the periodic Interest Charge on the previous day's balance. Then we subtract any payments and credits for that segment as of that day. The result is the daily balance for each segment. However, if your previous statement balance was zero or a credit amount, new transactions which post to your purchase segment are not added to the daily balance.

2. Next, for each segment, we add the daily balances together and divide the sum by the number of days in the Billing Cycle. The result is the Average Daily Balance for each segment.

3. At the end of each Billing Cycle, we multiply your Average Daily Balance for each segment by the daily periodic rate (APR divided by 365) for that segment, and then we multiply the result by the number of days in the Billing Cycle. We add the Interest Charges for all segments together. The result is your total Interest Charge for the Billing Cycle.

The Average Daily Balance is referred to as the Balance Subject to Interest Rate in the Interest Charge Calculation section of this Statement.

NOTE: Due to rounding or a minimum Interest Charge, this calculation may vary slightly from the Interest Charge actually assessed.

How can I Avoid Membership Fees? If a Renewal Notice is printed on this statement, you may avoid paying an annual membership Fee by contacting Customer Service no later than 45 days after the last day in the Billing Cycle covered by this statement to request that we close your account. To avoid paying a monthly membership Fee, close your account and we will stop assessing your monthly membership Fee.

How can I Close My Account? You can contact Customer Service anytime to request that we close your account.

How do you Process Payments? When you make a payment, you authorize us to initiate an ACH or electronic payment that will be debited from your bank account or other related account. When you provide a check or check information to make a payment, you authorize us to use information from the check to make a one-time ACH or other electronic transfer from your bank account. We may also process it as a check transaction. Funds may be withdrawn from your bank account as soon as the same day we process your payment.

How do you Apply My Payment? We generally apply payments up to your Minimum Payment first to the balance with the lowest APR (including 0% APR), and then to balances with higher APRs. We apply any part of your payment exceeding your Minimum Payment to the balance with the highest APR, and then to balances with lower APRs.

Billing Rights Summary (Does not Apply to Small Business Accounts)

What To Do If You Think You Find A Mistake On Your Statement: If you think there is an error on your statement, write to us at:

P.O. Box 30285, Salt Lake City, UT 84130-0285.

In your letter, give us the following information:

- Account information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake. You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us or notify us electronically, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. We will notify you in writing within 30 days of our receipt of your letter. While we investigate whether or not there has been an error, the following are true:
 - We cannot try to collect the amount in question, or report you as delinquent on that amount. The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
 - While you do not have to pay the amount in question until we send you a notice about the outcome of our investigation, you are responsible for the remainder of your balance.
 - We can apply any unpaid amount against your credit limit. Within 90 days of our receipt of your letter, we will send you a written notice explaining either that we corrected the error (to appear on your next statement) or the reasons we believe the bill is correct.

Your Rights If You Are Dissatisfied With Your Purchase: If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, the following must be true:

- 1) You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify; and
- 2) You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: P.O. Box 30285, Salt Lake City, UT 84130-0285. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

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ETC-08 10/01/2020



Pay online at unionplus.capitalone.com



Pay using the Capital One mobile app



Customer Service 1-800-622-2580

Changing your mailing address?

You can change your address by signing into your account online or by calling Customer Service.

Any written request on this form will not be honored.

How do I Make Payments? You may make your payment in several ways:

1. Online Banking by logging into your account;
2. Capital One Mobile Banking app for approved electronic devices;
3. Calling the telephone number listed on the front of this statement and providing the required payment information;
4. Sending mail payments to the address on the front of this statement with the payment coupon or your account information.

When will you Credit My Payment?

- ◆ For mobile, online or over the phone, as of the business day we receive it, as long as it is made **by 8 p.m. ET**.
- ◆ For mail, as of the business day we receive it, as long as it is received **by 5 p.m. local time** at our processing center. You must send the bottom portion of this statement and your check to the payment address on the front of this statement. Please allow at least seven (7) business days for mail delivery. Mailed payments received by us at any other location or payments in any other form may not be credited as of the day we receive them.

Transactions

Visit unionplus.capitalone.com to see detailed transactions.

CHARLIE D PONCE #9197: Payments, Credits and Adjustments

Trans Date	Post Date	Description	Amount
Aug 17	Aug 17	CAPITAL ONE MOBILE PYMTAuthDate 16-Aug	- \$200.00

CHARLIE D PONCE #9197: Transactions

Trans Date	Post Date	Description	Amount
Aug 11	Aug 11	SPOTIFY8777781161NY	\$9.99
Aug 11	Aug 13	ROSS STORE #486PALMDALECA	\$83.72

CHARLIE D PONCE #9197: Total Transactions **\$93.71**

Total Transactions for This Period **\$93.71**

Fees

Trans Date	Post Date	Description	Amount
Aug 11	Aug 11	PAST DUE FEE	\$38.00

Total Fees for This Period **\$38.00**

Interest Charged

Interest Charge on Purchases	\$134.31
Interest Charge on Cash Advances	\$0.00
Interest Charge on Other Balances	\$0.00

Total Interest for This Period **\$134.31**

Totals Year-to-Date

Total Fees charged	\$114.00
Total Interest charged	\$991.07

Interest Charge Calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charged
Purchases	24.74% D	\$6,392.26	\$134.31
Cash Advances	25.49% D	\$0.00	\$0.00

Variable APRs: If you have a letter code displayed next to any of the above APRs, this means they are variable APRs. They may increase or decrease based on one of the following indices (reported in The Wall Street Journal) as described below.

Code next to your APR(s)	How do we calculate your APR(s)?	When your APR(s) will change
P	Prime Rate + margin	The first day of the Billing Cycles that end in Jan., April, July and Oct.
L	3 month LIBOR + margin	
D	Prime Rate + margin	The first day of each Billing Cycle
F	1 month LIBOR + margin	

EXHIBIT B



Payment Information

Payment Due Date	For online and phone payments, the deadline is 8pm ET.
PAST DUE	
New Balance	Minimum Payment Due
\$7,572.34	\$7,572.34

IMPORTANT: Your account has charged off and is now serviced by the Recoveries department at 1-800-258-9319. Your full balance is due. Any payment you make will reduce your balance and help pay off your debt faster. The amount you owe may differ if you've entered into a separate payment agreement.

Account Summary

Previous Balance	\$7,394.53
Payments	\$0.00
Other Credits	\$0.00
Transactions	+ \$0.00
Cash Advances	+ \$0.00
Fees Charged	+ \$0.00
Interest Charged	+ \$177.81
New Balance	= \$7,572.34
Available Credit (as of May 17, 2023)	N/A

Account Notifications

 Welcome to your account notifications. Check back here each month for important updates about your account.

Pay or manage your account at unionplus.capitalone.com

Customer Service: 1-800-622-2580

See reverse for Important Information



CHARLIE D PONCE
10254 E AVENUE R14
LITTLEROCK, CA 93543-1525



Payment Due Date: **Past Due**

Account ending in 9197

New Balance	Minimum Payment Due	Amount Enclosed
\$7,572.34	\$7,572.34	\$ _____

Please send us this portion of your statement and only one check (or one money order) payable to Capital One to ensure your payment is processed promptly. Allow at least seven business days for delivery.

Capital One
P.O. Box 60519
City of Industry CA 91716-0519



How can I Avoid Paying Interest Charges? If you pay your New Balance in full by the due date **each month**, we will not charge interest on new transactions that post to the purchase balance. If you have been paying in full **without** Interest Charges, but fail to pay your next New Balance in full, we will charge interest on the unpaid balance. Interest Charges on Cash Advances and Special Transfers start on the transaction date. Promotional offers may allow you to pay less than the total New Balance and avoid paying interest on new transactions that post to your purchase balance. See the front of your statement for additional information.

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How do you Apply My Payment? We generally apply payments up to your Minimum Payment first to the balance with the lowest APR (including 0% APR), and then to balances with higher APRs. We apply any part of your payment exceeding your Minimum Payment to the balance with the highest APR, and then to balances with lower APRs.

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In your letter, give us the following information:

- Account information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake. You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us or notify us electronically, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. We will notify you in writing within 30 days of our receipt of your letter. While we investigate whether or not there has been an error, the following are true:
 - We cannot try to collect the amount in question, or report you as delinquent on that amount. The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
 - While you do not have to pay the amount in question until we send you a notice about the outcome of our investigation, you are responsible for the remainder of your balance.
 - We can apply any unpaid amount against your credit limit. Within 90 days of our receipt of your letter, we will send you a written notice explaining either that we corrected the error (to appear on your next statement) or the reasons we believe the bill is correct.

Your Rights If You Are Dissatisfied With Your Purchase: If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, the following must be true:

- 1) You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify; and
- 2) You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: P.O. Box 30285, Salt Lake City, UT 84130-0285. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

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Pay online at unionplus.capitalone.com



Pay using the Capital One mobile app



Customer Service 1-800-622-2580

Changing your mailing address?

You can change your address by signing into your account online or by calling Customer Service.

Any written request on this form will not be honored.

How do I Make Payments? You may make your payment in several ways:

1. Online Banking by logging into your account;
2. Capital One Mobile Banking app for approved electronic devices;
3. Calling the telephone number listed on the front of this statement and providing the required payment information;
4. Sending mail payments to the address on the front of this statement with the payment coupon or your account information.

When will you Credit My Payment?

- ◆ For mobile, online or over the phone, as of the business day we receive it, as long as it is made **by 8 p.m. ET**.
- ◆ For mail, as of the business day we receive it, as long as it is received **by 5 p.m. local time** at our processing center. You must send the bottom portion of this statement and your check to the payment address on the front of this statement. Please allow at least seven (7) business days for mail delivery. Mailed payments received by us at any other location or payments in any other form may not be credited as of the day we receive them.

Transactions

Visit unionplus.capitalone.com to see detailed transactions.

CHARLIE D PONCE #9197: Payments, Credits and Adjustments

Trans Date	Post Date	Description	Amount
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CHARLIE D PONCE #9197: Transactions

Trans Date	Post Date	Description	Amount
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Fees

Trans Date	Post Date	Description	Amount
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Total Fees for This Period			\$0.00
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Interest Charged

Interest Charge on Purchases	\$177.81
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Interest Charge on Cash Advances	\$0.00
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Interest Charge on Other Balances	\$0.00
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Total Interest for This Period	\$177.81
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Totals Year-to-Date

Total Fees charged	\$0.00
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Total Interest charged	\$820.79
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Interest Charge Calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charged
Purchases	27.99% D	\$7,480.20	\$177.81
Cash Advances	28.74% D	\$0.00	\$0.00

Variable APRs: If you have a letter code displayed next to any of the above APRs, this means they are variable APRs. They may increase or decrease based on one of the following indices (reported in The Wall Street Journal) as described below.

Code next to your APR(s)	How do we calculate your APR(s)?	When your APR(s) will change
P	Prime Rate + margin	The first day of the Billing Cycles that end in Jan., April, July and Oct.
L	3 month LIBOR + margin	
D	Prime Rate + margin	The first day of each Billing Cycle
F	1 month LIBOR + margin	

